AFRICA CENTURY LIMITED
versus
ZIMBABWE REVENUE AUTHORITY

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 6 October 2025 and 23 March 2026

Opposed Application-Lien on imported goods

D Tivader, for the applicant
H Muromba, for the respondent

MUSITHU J:

1. The applicant approached this Court seeking relief by way of a *declaratur*. The relief sought was captured in the draft order as follows:

> **"IT IS ORDERED THAT:**
> The Applicant seeks the following relief against the Respondent:
> 1. That the seizure of the Applicant's motor vehicle, namely a Toyota Land-Cruiser VXR bearing Chassis Number JTMAA7BJ004068744, effected in terms of Notice of Seizure Number 028251A dated 19 September 2024, be and is hereby declared unlawful.
> 2. That the Respondent be and is hereby directed to unconditionally release the aforementioned motor vehicle to the Applicant forthwith.
> 3. That the Respondent shall bear and pay the Applicant's costs of suit."

2. The application was opposed.

Background to the application and the applicant's case

3. The applicant is a registered Deposit Taking Microfinance Bank specialising *inter alia,* in the business of Financial Leasing. The respondent is a body corporate established in terms of section 3 of the Revenue Authority Act [*Chapter 23:11*]. The applicant's founding affidavit was deposed to by one Stanley Matiza, in his capacity as its Managing Director.

4. Sometime in December 2023, the applicant was approached by Brian Justice Enterprises (Private) Limited (hereinafter referred to as BJ Enterprises), a company duly incorporated in terms of the laws of Zimbabwe, with an application for a Financial Lease Facility. Following internal deliberations, the applicant's directors approved the application, thereby authorising the applicant's executive team to conclude a Financial

Lease Agreement with BJ Enterprises. After the approval, the applicant and BJ Enterprises concluded a Memorandum of Agreement of Lease on 7 February 2024.

5. The terms and conditions of the aforesaid Financial Lease were, *inter alia,* that (i) the applicant would purchase a motor vehicle, namely a Toyota Land-Cruiser VXR, at a total cost of US$147,191.00, comprising the cost of the vehicle and the Customs Duty payable thereon, (ii) the said motor vehicle would be imported in the name of BJ Enterprise; (iii) that BJ Enterprise would lease the aforesaid motor vehicle from the applicant for a period of twelve (12) months commencing on 7 February 2024 and ending on 7 March 2025; (iv) that upon full satisfaction of its obligations under the said lease and payment of the agreed residual value, BJ Enterprise would assume ownership of the said motor vehicle, which at all material times would, until then, remain the property of the applicant.

6. After the conclusion of the lease agreement, the applicant duly acquired the said motor vehicle from AMS Middle East FZE, a company conducting vehicle sales business in the United Arab Emirates. AMS Middle East FZE is the Principal and Distribution Channel for Toyota Zimbabwe. The applicant effected payment in the sum of US$91,590.00 to AMS Middle East FZE.

7. The applicant further averred that on 21 March 2024, the said motor vehicle was imported into Zimbabwe through the Beitbridge Border Post. The respondent assessed Customs Duty in the sum of US$55,601.00 as evidenced by the Bill of Entry Form 21UCR dated 21 March 2024. On 2 August 2024, the applicant paid duty for the motor vehicle in accordance with the respondent's assessment. The applicant averred that after complying with all financial obligations and import procedures and awaiting delivery of the motor vehicle, it was shocked to be advised that the respondent had seized the motor vehicle, allegedly on account of BJ Enterprises' outstanding customs duty issues.

8. Upon inquiry, the applicant was advised that the motor vehicle had indeed been seized under Notice of Seizure Number 028251A dated 19 September 2024. The applicant immediately engaged the respondent by way of a letter dated 20 September 2024, with a view to securing the release of the motor vehicle. The applicant averred that the respondent issued a provisional response to the applicant's letter, merely advising that the matter was receiving attention and that the Commissioner's response would be communicated in due course.

9. As at 24 October 2024, no substantive response had been received from the respondent, prompting the applicant to dispatch a further follow-up letter to the respondent. Despite

several physical and telephonic follow-ups, no further communication was received from the respondent. It was evident that although the aforesaid motor vehicle was imported in the name of BJ Enterprise, ownership thereof vested in the applicant. The applicant had no interest in the dispute between BJ Enterprises and the respondent. According to the applicant, it appeared that the respondent acted in terms of section 201(1) of the Customs and Excise Act [*Chapter 23:02*] (the Act) in seizing the said motor vehicle on account of the alleged outstanding duty issues pertaining to BJ Enterprises.

10. Further according to the applicant, if the respondent acted pursuant to the aforesaid legal provision, the seizure of the applicant's motor vehicle was unlawful in that the motor vehicle did not belong to the alleged defaulter, BJ Enterprises, but to the applicant. The applicant argued that there were no other perceivable legal grounds upon which the respondent's actions could be justified and prayed that the court grants the order as prayed for.

The Respondent's Case

11. In its opposing affidavit, the respondent averred that in terms of s 223A (4) of the Act, it was empowered to conduct post-clearance audits on goods released at ports of entry or exit to verify the accuracy of declarations. The respondent investigated the affairs of BJ Enterprises and requested it to prove the source of fuel sold at its Chinhoyi site. The company produced invoices from Yellow Metal Fuels. The verification process revealed that some invoices produced by BJ Enterprises were false and did not originate from Yellow Metal Fuels. BJ Enterprises failed to prove that the fuel on the disowned invoices was duty-paid.

12. As a result of that finding, a special warrant for unpaid duties and import taxes was issued under reference ZWHO/RA/SW/15/06/2024, together with a bill of USD 1,274,830.48. As a recovery measure, a lien was placed on BJ Enterprises' accounts in terms of s 201 of the Act. The accounts were flagged such that any goods imported or exported by BJ Enterprises were to be placed under lien in terms of s 201 of the Act.

13. The respondent averred that on 7 August 2024, Southern Business Services, on behalf of Toyota Zimbabwe, requested the ZIMRA Bonds Office that the ownership of the motor vehicle in Toyota Zimbabwe's bond be changed to BJ Enterprises. Ownership was accordingly changed and the consumption entry was lodged in the owner's name, BJ Enterprises. On 8 August 2024, a bill of entry, ZWHR C7648 and ZWBBS 11596 of 06

March 2024 was registered in the name of BJ Enterprises as the importer, clearing a 2023 Toyota Land Cruiser LC300 VXR, Chassis Number JTMAA7BJ004068744.

14. The respondent further gave the background of the entry from removal in bond to warehousing as follows:

14.1 On 6 March 2023, Toyota Zimbabwe removed the said vehicle and the invoice attached and all attachments lodged in Asycuda System for clearance of the vehicle indicated that Toyota Zimbabwe had purchased the vehicle from AMS Middle East. On 20 March 2024, the vehicle was warehoused under bill of entry S1487 of 20/03/2024 in Toyota Zimbabwe's name. Thereafter, the motor vehicle was imported into Zimbabwe by BJ Enterprises after the change of ownership was effected.

14.2 Further, according to the respondent, all the import documentation reflected an importation and warehousing of a motor vehicle by Toyota Zimbabwe which was then sold to BJ Enterprises and cleared for consumption accordingly. The respondent averred that BJ Enterprises was advised through their agent that a lien had been placed on its accounts, and the vehicle would be held accordingly pending payment of the debt owed.

14.3 On 12 September 2024, BJ Enterprises wrote to the Commissioner Revenue Assurance requesting release of the vehicle, arguing that it belonged to their tenant, one Tinashe and his company T & F Logistics (Pvt) Ltd. They requested the lifting of the lien pending finalisation of the matter.

14.4 The vehicle was detained under Receipt for Items Held No. 028251A dated 19 September 2024. On 20 September 2024, the applicant also requested the release of the vehicle, claiming ownership by virtue of financing its purchase. On 22 October 2024, the respondent's officials held a meeting with the applicant's officials. That meeting was followed by a tripartite meeting held on 23 October 2024 between the applicant, BJ Enterprises, and the respondent.

14.5 After the meeting, the applicant filed an appeal to have the lien placed on BJ Enterprises uplifted. On 7 November 2024, the respondent upheld the special warrant and confirmed that Customs duty was due and payable by BJ Enterprises. Further, on 21 November 2024, the applicant was advised that the matter was between ZIMRA and BJ Enterprises, since all importation documents were in BJ Enterprises' name.

15. As regards the merits, the respondent averred that the present application was one for the review of the respondent's decision disguised as a *declaratur*. The respondent also

averred that the applicant must have filed the present application after realising that it was out of time to file a review application as the eight-week period within which to do so had lapsed.

16. The respondent further averred that the motor vehicle was not seized but placed on Receipt for Items Held 028251A and the detention of the vehicle was in accordance with s 201 of the Act. It was therefore lawful to place a lien on goods imported or entered for export by a person who owed the respondent. Any importations by BJ Enterprises could be subjected to the lien. The lien was therefore lawful since BJ Enterprises imported the vehicle into the country following a change of ownership from Toyota Zimbabwe.

17. The respondent disputed the applicant's claims that it was the owner of the vehicle. It averred that what the applicant alluded to was merely a financing arrangement which it had with BJ Enterprises, and that did not affect the rights and obligations of the respondent as provided for in the Act.

18. The respondent received two appeals pertaining to the release of the motor vehicle in question, one from BJ Enterprises and the other from the applicant. The applicant was then contacted on 9 October 2024 and was requested to submit schedules which were being referred to in their agreement. Following the request, a meeting was held with the respondent on 23 October 2024.

19. Further, according to the respondent, the lien was imposed against BJ Enterprises by virtue of its status as the importer. When the request for change of ownership was done there was no attachment indicating that the vehicle was owned by the applicant. Further, s 201 of the Act states that claims of the State shall have priority over claims of all persons upon the said goods of whatever nature and may be enforced by sale or other proceedings if the debt was not paid within three months after the date upon which it became due.

20. The respondent averred that the detention of the vehicle was lawful as it was done in accordance with the law. The respondent also averred that any financial arrangement between the applicant and BJ Enterprises did not affect the respondent's lien over the imported vehicle. The respondent submitted that the application was procedurally flawed and substantively without merit and prayed for its dismissal with costs on the higher scale.

The Submissions

21. At the commencement of the hearing, Mr *Tivader*, for the applicant, abandoned the points *in limine* that had been raised on behalf of the applicant. Mr *Tivader* submitted that the central issue was whether the imposition of a lien under s 201 of the Act was couched in mandatory terms. The use of the word 'shall' meant that it was couched in mandatory terms. However, the issue of whether goods could be detained was discretionary. Mr *Tivader* also submitted that when the respondent exercised its discretion, it did so in terms of the Administrative Justice Act. Counsel further submitted that the respondent confirmed that the detention of the motor vehicle was not proportionate and exercisable.

22. Mr *Tivader* further submitted that the requirements of s 201 were not satisfied in the present matter. He defined a lien as a right to retain a movable object, by possessing something to force a debtor to settle a debt. Counsel referred to the case of *Mukombachoto v Commercial Bank of Zimbabwe Limited* 2002 (1) ZLR 21, in support of this proposition. Mr *Tivader* averred that the purpose of a lien was to force a debtor to pay a debt. However, no debt was owed to the fiscus by the applicant. The debt was owed by a third party. BJ Enterprises was not connected to the applicant and was not a subsidiary of the applicant.

23. It was also submitted that the applicant was the one who invoiced and signed for the importation of the car. Further, clause 3(a) of the lease demonstrated that the applicant was the owner of the motor vehicle in question and not BJ Enterprises. The applicant paid USD 91,000 and also paid duty. If the purpose of detention was to secure USD 1,3 million, the applicant would not pay that debt and BJ Enterprises would not pay as well as they were disputing the debt.

24. Mr *Tivader* argued that it was not proportionate to detain the motor vehicle for over one year when there was no chance that the respondent would receive USD 1,3 million from the applicant on behalf of BJ Enterprises. Counsel also submitted that whether the importer was the applicant or Toyota Zimbabwe would make no difference. The last requirement of importation was payment of customs duty and the applicant had done so. The vehicle had been detained after customs duty was paid.

25. It was further submitted on behalf of the applicant that BJ Enterprises could not have been the importer because it was not the owner or beneficially interested in the goods. Therefore, the letter written by the supplier's agent requesting change of ownership from Toyota Zimbabwe to BJ Enterprises could not have any impact on ownership. In support

of his argument, counsel cited the cases of *Kanokanga v Evans* 2000 (2) ZLR 41 and *Xaba v Director of Customs* 2002 (1) ZLR 609 where the court held that a registration book of a vehicle was not proof of ownership.

26. Mr *Tivader* also submitted that there was no lawful *causa* in terms of which BJ Enterprises would have been the owner of the motor vehicle in question nor was there delivery of the vehicle to BJ Enterprises. Section 201 of the Act was not engaged because BJ Enterprises was not the owner of the vehicle. The applicant was both the importer and owner of the vehicle because it had paid customs duty for the vehicle.

27. In response, Mr *Muromba* for the respondent submitted that the critical issue was how BJ Enterprises became involved in the matter. From the documents placed before the court, BJ Enterprises was the importer and not the applicant. It was further submitted that the Balance of Payments Form completed by the applicant showed that payment was being made on behalf of BJ Enterprises. When the vehicle was accepted into the bonded warehouse, Toyota Zimbabwe realised that the vehicle belonged to BJ Enterprises. When the lien was imposed on the motor vehicle, BJ Enterprises lodged an objection with ZIMRA, and for that reason s 201 was applicable in this case.

28. Mr *Muromba* submitted that this was a proper case for invoking s 201 of the Act. The court was referred to the case of *Director Customs and Excise v ABSA Bank & Anor* SC 108/98 where it was held that s 201 was an extension of the common law position regarding the imposition of liens. Section 201 of the Act permitted the exercise of a lien over unrelated goods and entrenched the principle of priority of claims by the State. BJ Enterprises had an outstanding debt to the State and therefore s 201 was applicable. The debt was properly established. A special warrant had been issued for BJ Enterprises.

29. It was also argued that the present application failed to meet the requirements of a *declaratur*. The application was devoid of merit and ought to be dismissed. In its heads of argument, the respondent argued that the applicant was approaching the court for what amounted to a legal opinion upon an abstract or academic matter.

30. The respondent averred that from a reading of its papers, the applicant wanted the court to express its own opinion on whether the s 201 of the Act was properly invoked by the respondent, whether the vehicle in issue belonged to the BJ Enterprises and whether BJ Enterprises was the importer of the vehicle. According to the respondent, this was nothing more than a factual situation whose questions had already been answered by the respondent.

31. In reply, Mr *Tivader* submitted that it was the respondent which was raising the issue of the importer. The certificate of conformity Zimbabwe Consignment Based Conformity Assessment (CBCA) Programme) issued by the EAA Company Limited showed that Toyota Zimbabwe was the importer of the vehicle. There was no mention of BJ Enterprises as the importer. No document identified BJ Enterprises as the importer.

32. Mr *Tivader* further submitted that that the central issue was not about the extent of the lien, but whether it had arisen. The request for change of ownership was only made because the motor vehicle was to be delivered to BJ Enterprises. The motor vehicle was to be registered in BJ Enterprises' name, but the registration of the vehicle in BJ Enterprises name did not prove ownership.

The Analysis

33. Three issues arose for determination in the present application. The first issue was whether the application was properly before the Court as a *declaratur*. The second issue was about who was the importer and owner of the motor vehicle in question. The third issue was whether section 201 of the Act was lawfully engaged.

Whether the application was properly before the Court as one for a *declaratur*

34. The respondent averred that the present application was in substance a review of an administrative decision disguised as a *declaratur*, brought outside the prescribed time-limits of filing a review. Section 14 of the High Court Act [*Chapter 7:06*] provides that:

> "The High Court may, in its discretion at the instance of any interested person enquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination"

35. For s14 to be properly engaged in an application of this nature, an applicant must demonstrate that he has a real interest the matter and that there must an existing, contingent or future right to protect. In *Govere (Executor Estate Late David Govere) & Anor v NMB Bank Limited* & 2 Ors HH309/24, the court held as follows:

> "A review is not concerned with the merits of the decision but whether it was arrived at in an acceptable fashion. In a review the focus is on the process, and on the way in which the decision-maker came to the challenged decision. Instead of asking whether the decision was right or wrong, a court on review concerns itself with the procedural irregularities. Lord Brightman in *Chief Constable of the North Wales Police v Evans* [1982] 3 All ER 141 (HL) at 154d said judicial review is concerned, not with the decision, but with the decision-making process.
>
> A declaratory order is a legal remedy that can be sought when there is uncertainty or dispute over the existence of a legal right or obligation. It is used where there is a clear legal dispute or legal uncertainty regarding, for instance administrative or executive action or constitutional rights. In a *declaratur* a court is being asked to declare that a certain state of affairs exists. It may also be used to determine whether actual or pending action is

> lawful or legal. It is a simple means of curing illegal activity. With a *declaratur* the court gives a definitive and authoritative answer to the question as to the legal position of a particular given state of affairs. See: *Family Benefit Society* v *Commissioner for Inland Revenue* 1995 (4) SA 120 (T) at 125; *Garment Workers' Union, Western Province* v *Industrial Registrar* 1967 (4) SA 316 (T)". *My emphasis*

36. It is common cause that the dispute between the parties arose from the detention of a motor vehicle, a Toyota Land Cruiser VXR, chassis number JTMAA7BJ004068744. The vehicle was detained by the respondent on 19 September 2024 under Receipt for Items Held No. 028251A. The respondent's justification for the detention was that BJ Enterprises owed customs duty and import taxes in excess of USD 1,274,830.48, arising from a post-clearance audit and special warrant issued under reference ZWHO/RA/SW/15/06/2024. The applicant's position was that it owned the vehicle, and that the respondent had no lawful basis to detain it under section 201 of the Act.

37. The applicant's claim must be understood in the context of its case as pleaded in the founding affidavit and as set out in the draft order. Having claimed ownership of the vehicle, the applicant's case as I understood it was that the respondent's decision to place a lien on a vehicle that was not owned by BJ Enterprises was wrong. Put differently, the applicant was inviting the court to interrogate the lawfulness of the respondent's decision to place a lien on its vehicle in respect of a debt owed by BJ Enterprises to the respondent. The applicant did not challenge the lawfulness of the decision making process, but the propriety of invoking s 201 of the Act under the circumstances.

38. The applicant's position is set out in paragraphs 7 and 8 of its founding affidavit which state as follows:

> "7. The Applicant has no interest in the dispute between Brian Justice Enterprises (Pvt) Ltd and the Respondent. However, the Respondent presumably acted in terms of **Section 20(1)** of the **Customs & Excise Act** to seize the aforesaid motor vehicle on account of the aforesaid Brian Justice's allegedly outstanding duty issues.
> 8. I am advised that if indeed the Respondent was acting pursuant to the aforesaid legal provision, the seizure of the Applicant's motor vehicle is unlawful because the motor vehicle concerned does not belong to the alleged defaulter, Brian Justice Enterprises but to the Applicant."

39. The reference to s 20(1) of the Act must have been a typo because the provision that applies to liens is s 201 of the same Act. In para 1 of the draft order, the applicant invited the court to declare as unlawful, the seizure of its vehicle by the respondent in terms of the Receipt for Items Held Number 128251A of 19 September 2024.

40. Although the requirements of a *declaratur* were not elegantly set out in the founding affidavit, they were sufficiently pleaded to the extent that the court was required to

interrogate the lawfulness of the respondent's decision to invoke s 201 of the Act in placing a lien on the vehicle. Whether there is merit in the applicant's application, is an issue that must considered separately from the present enquiry of the appropriateness of the applicant's decision to seek a *declaratur* instead of a review of the respondent's decision.

41. The court determines that the application is properly before the court as one for a *declaratur* instead of a review. The preliminary point concerning the appropriateness of proceeding by way of a *declaratur*, which was persisted with by the respondent's counsel in his oral submissions is accordingly dismissed for lack of merit.

Who was the importer and owner of the motor vehicle?

42. The next issue relates to the importation and ownership of the motor vehicle as between the applicant and BJ Enterprises. In resolving this issue, the Court must first examine the true nature of the transaction that led to the present state of affairs, and the role played by the applicant therein. Only upon a proper appreciation of the process will the court be able to ascertain where the rights of ownership were properly vested.

43. Ownership of movable property under Zimbabwean law is determined not by registration or administrative entries, but by a lawful causa and delivery. This principle has been repeatedly affirmed, including in *Kanokanga v Evans* 2000 (2) ZLR 41 and *Xaba v Director of Customs* 2002 (1) ZLR 609. Section 2 of the Act, defines an importer as:

> "…includes any owner of or other person possessed of or beneficially interested in any goods at any time before entry of the same has been made and the requirements of this Act fulfilled"

44. The applicant claimed ownership of the vehicle on the basis that it purchased it from AMS Middle East FZE and paid the customs duty assessed by the respondent. The respondent's case, however, urges the court to look beyond form and examine the substance of the transaction.

45. The record reveals that BJ Enterprises was under investigation for serious customs violations relating to fuel imports. The investigation revealed that invoices allegedly issued by a fuel supplier, Yellow Metal Fuels were found to be false and disowned. As a result, BJ Enterprises failed to prove that its fuel was duty-paid, leading to the issuance of a special warrant for unpaid duties amounting to USD 1,274,830.48. A lien was placed on BJ Enterprises' accounts, and its profile was flagged such that any importations by it would be subject to section 201 enforcement measures. The respondent flagged BJ

Enterprises' accounts so that any goods imported or exported by it would be subject to lien.

46. The paper trail before the court shows that on 6 March 2024, Toyota Zimbabwe registered a Removal in Bond Entry (RIB) which showed that it had purchased the vehicle from AMS Middle East. The vehicle was then warehoused under Bill of Entry S1487 of 20 March 2024 in the name of Toyota Zimbabwe.

47. On 7 August 2024, Southern Business Services, acting on behalf of Toyota Zimbabwe, requested the ZIMRA Bonds Office to change ownership of the vehicle from Toyota Zimbabwe to BJ Enterprises. A consumption entry was thereafter lodged on 8 August 2024 in the name of BJ Enterprises as the Consignee, and the vehicle was accordingly cleared for consumption under bill of entry (C7648).

48. What the paper trail serves to demonstrate is that the vehicle was brought into Zimbabwe by Toyota Zimbabwe through a Removal in Bond Entry. At that point, the vehicle was not duty paid and Toyota Zimbabwe could not release the vehicle to a third party until it was duty paid. The attached consumption entry was registered by Southern Business Services at the Harare Customs House as Entry Number C7648 on 8 August 2024. The consignee was now BJ Enterprises.

49. As at the time the vehicle was purchased and brought into Zimbabwe, the importer or consignee of the vehicle was Toyota Zimbabwe which registered a warehousing entry that accounted for the presence of the vehicle in the country before payment of customs duty. That status was changed when Toyota Zimbabwe through the clearing agent Southern Business Services, caused a Consumption Entry to be lodged with the respondent identifying BJ Enterprises as the importer from the point of registration of that entry. It was also at that point that Toyota Zimbabwe approached the respondent for change of ownership of the vehicle from Toyota Zimbabwe to BJ Enterprises.

50. This chronology is critical, as it demonstrates that the vehicle entered the customs stream as an importation firstly by Toyota Zimbabwe and secondly by BJ Enterprises after the lodging of the consumption entry, and not the applicant. There may have been a contractual arrangement as between the applicant and BJ Enterprises in terms of which the applicant played the role of financier, but that arrangement did not transcend customs processes that regulate the importation of goods. The mere fact that the applicant provided funding did not automatically make it the importer or owner of the goods for customs purposes.

51. The request by Toyota Zimbabwe for the change of ownership of the vehicle from Toyota Zimbabwe to BJ Enterprises had its own legal consequences. A similar request was also made by a representative of Southern Business Services through an email of 7 August 2024 addressed to the respondent's Harare Bonds office. A consumption entry was lodged by Southern Business Services in BJ Enterprises' name, reflecting BJ Enterprises as the consignee, and at that point, the vehicle entered the customs stream as an importation by BJ Enterprises. Counsel for the respondent submitted that once this occurred, BJ Enterprises became the importer, and customs duty was accounted for in its name as the importer and the owner of the vehicle. He was correct.

52. Further, on 12 September 2024, BJ Enterprises wrote to the respondent making representations for the release of the vehicle. That conduct is telling. If the vehicle truly belonged to the applicant, there would have been no basis for BJ Enterprises to assert any right to its release. That BJ Enterprises did so, confirmed that it regarded itself as having some rights in the vehicle.

Whether section 201 of the Act was lawfully engaged.

53. Section 201 of the Act provides that:

> "201. Liens and preferences
>
> (1) The correct amount of duty payable in respect of any goods shall, from the time when it should have been paid, constitute a debt due to the State by the person concerned and shall, at any time after it becomes due, be recoverable in a court of competent jurisdiction by proceedings in the name of the Commissioner, and any goods in a bonded warehouse or in the custody of the Department and belonging to that person, and any goods afterwards imported or entered for export by the person by whom the duty is due, shall, while still under the control of the Department, be subject to a lien for such debt and may be detained by the Department until such debt is paid, and the claims of the State shall have priority over the claims of all persons upon the said goods of whatever nature and may be enforced by sale or other proceedings if the debt is not paid within three months after the date upon which it became due." (Underlining for emphasis)

54. Section 201 provides the legal framework for the imposition of a lien over goods imported or entered for export by a person who owes customs duty to the State. The lien is constituted in respect of any goods belonging to the debtor concerned that come under the custody of the Commissioner from time to time. While the section extends the common-law lien, it does not abolish its essential character. A lien, both at common law and under statute, is a right to retain property belonging to the debtor as security for a debt. See *Mukombachoto v Commercial Bank of Zimbabwe Ltd* 2002 (1) ZLR 21.

55. The Act, in s 201 states that claims by the State for unpaid customs debt take precedence over claims by other persons in respect of the said goods. The provision is properly

engaged if the respondent establishes that there is an outstanding customs debt owed by a person whose goods are under customs control. The fact that there was outstanding customs debt by BJ Enterprises to the State was not disputed. In any case, it was not an issue before the court because there was no connection between the applicant and the debt.

56. Once it was it established that BJ Enterprises was the importer of the vehicle, then it followed that section 201 could be invoked in respect of the vehicle. Goods that are imported into the country under an RIB entry remain under the control of the Commissioner until such time that customs duty is paid and they are released to the importer. The lien was imposed on the vehicle once it was cleared for consumption through the consumption entry and payment of duty in the name of BJ Enterprises.

57. In view of the foregoing, the court determines that the imposition of the lien on the vehicle in terms of s 201 of the Act was proper, and the respondent's conduct was therefore unimpeachable. The application is devoid of merit, and it stands to be dismissed.

Costs of suit

58. The general rule is that costs follow the event. The respondent sought the dismissal of the application with costs on the higher scale of attorney and client. No further motivation for such level of costs was made in the oral submissions. The matter raised an important legal question concerning the constitution of liens in customs matters, and for that reason I am disinclined to make an award of costs against the applicant. The matter fell within the realm of public interest litigation.

Resultantly it is ordered that:

1. The application is hereby dismissed for lack of merit.
2. Each party shall bear its own costs of suit.

MUSITHU J: ……

Gill, Godlotons and Gerrans, applicant's legal practitioners
Kantor & Immerman, respondent's legal practitioners